AMENDED CAPTION

IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST

REPUBLIC OF SRI LANKA

C.A.566/97 (F)
D.C.Kalutara Case No.5258/P

3A.

1.

2.

3.

4.

5.

Anthonidure Hemadasa de Silva (Died). Kaluwamodera, Aluthgamwela,
Aluthgama.
Plaintiff

VS.

Uyanage Pemasiri Silva.

Pipiyandara Somilan Silva both
Kaluwamodara.
Authgamwela, Aluthgama.

Sudasinghe Garvin Silva (Dead).
Sri Lananda Road,
Kaluwamodara,Alutgama.

Minningala Somawathie de Silva (Dead) Sri Lananda Road,
Aluthgamwela,Alutgama.
Ainel Sunethra de Silva.
82 Davalasingharama Mawatha,
Modera,Colombo 15.

Pipiyandara Peter Silva (Dead)

6. Pipiyandara Simelhamy (Dead)

7. Pipiyandara Ancy Nona (Dead)
All of Aluthgamwela, Kaluwamodera, Alutgama.

8. Anvil Vinitha de Silva (Dead)
Averiwatta Moragolla, Beruwela.

9. Marukku Fernando alias Sunanda de Silva (Dead)
Kaluwamodera, Alutgama.

Defendants

And Now Between

Pipiyandara Somilan Silva (Died)
Kaluwamodera, Aluthgamwela,
Aluthgama.
2a. Chandaradura Dayawathei.
2b. Raveendra Prasanna Silva.
2e. Sujeewa Chandani Silva.
2d. Janaka Chaminda Silva.
2e. Chanaka Sanjeewa Silva.
Aluthgamwela,
Kaluwamodara,
Aluthgama.

2nd Defendant -Appellants
VS.

1. Anthonidure Hemadasa de Silva (Dead)

1A. Liyanage Kusumawathi Silva
lB. Anthonidura Vidura Pushpakumara
1e. Anthonidura Nayani Priyanga All of
Seelananda Road,
Kaluwamodera,Aluthgamwela,
Alutgama.
1D. Rev. Kaluwamodera
Seelathilake before getting the robe Anthonidura Viraj Rajitha Kumara. Kshethrasanna Mala
Viharaya Kaluwamodera.
1E. Anthonidura Jeewani Prasanga.
1F. Anthonidura Chirani Hemanthi.
1G. Anthonidura Ruwan Athula.
1H. Anthonidura Thejani Neelakanthi All of
Seelananda Road, Kaluwamodera, Aluthgamwela, Alutgama.
11. Paththinigre Nandana Darmapriya
Priyangana,Simon Silva Mawatha,
Aluthgama.

Plaintiff- Respondents

3. Liyanage Pemasiri Silva(Died)
Kaluwamodera, Aluthgamwela,
Alutgama.

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3A. Pipiyandara Somilan Silva (Dead)
Kaluwamodera, Aluthgamwela,
Alutgama.
3Al. Chandaradura Dayawathei. 3A2. Raveendra Prasanna Silva.
3A3. Sujeewa Chandani Silva.
3A4. Janaka Chaminda Silva.
3As. Chanaka Sanjeewa Silva.
Aluthgamwela, Kaluwamodera,
Alutgama.

4. Aniel Sunethra De Silva.
82, Davaasingharama Mawatha,
Modera, Colombo 15.

5. Pipiyandara Peter De Silva (Died)
SA. Pipiyandara Somilan Silva (Died)
Kaluwamodera, Aluthgamwela,
Alutgama.
SAL Chandaradura Dayawathei sA2. Raveendra Prasanna Silva
sA3. Sujeewa Chandani Silva
sA4. Janaka Chaminda Silva
sAs. Chanaka Sanjeewa Silva.
Aluthgamwela, Kaluwamodera,
Alutgama.

6. Pipiyandara Simelhami (Died)
6A. Pipiyandara Somilan Silva (Died)
Kaluwamodera, Aluthgamwela,
Aluthgama.

6Al. Chandaradura Dayawathei 6A2. Raveendra Prasanna Silva
6A3. Sujeewa Chandani Silva
6A4. Janaka Chaminda Silva
6As. Chanaka Sanjeewa Silva.
Aluthgamwela, Kaluwamodera,
Alutgama.

7. Pipiyandara Ansy Nona (Dead)
7A. Pipiyandara Somilan Silva (Died)
Kaluwamodera, Aluthgamwela,
Alutgama.
7Al. Chandaradura Dayawathei 7A2. Raveendra Prasanna Silva
7A3. Sujeewa Chandani Silva

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Before:

Counsel:

Argued on:

Written Submissions:

Judgment on:

7A4. Janaka Chaminda Silva
7AS. Chanaka Sanjeewa Silva.
Aluthgamwela, Kaluwamodera,
Alutgama.

B. Anvil Vinitha De Silva (Dead)
BA. Pipiyandara Somilan Silva (Died) BAl. Chandaradura Dayawathei BA2. Raveendra Prasanna Silva
BA3. Sujeewa Chandani Silva
BA4. Janaka Chaminda Silva
BAS. Chanaka Sanjeewa Silva.
Aluthgamwela, Kaluwamodera,
Alutgama.

9. Marukku Fernando Alias
Susil Sunanda De Silva (Dead)
Kaluwamodera, Aluthgamwela,
Alutgama.
9A. Pathinige Nandana Darmapriya Priyanaga.
Simon Silva Mawatha, Alutgama.

Defendant Respondents

Janak De Silva J.

&

N. Bandula Karunarathna J.

Dhanuka Lakmal AAL for 2nd Defendant-Appellant
H.Withanachchi with Shantha Karunadhara for the Substituted Plaintiff - Respondent

19.09.2019

By the 2nd Defendant-Appellant on the 23.11.201B
By the Plaintiff - Respondent on 11.03.2019

16/11/2020

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N. Bandula Karunarathna J.

The Plaintiff - Respondent (hereinafter sometimes called and referred to as the Plaintiff) instituted the action bearing No:5258/P in the District Court of Kalutara against the 1st ,3,d to

9th Defendant Respondents (hereinafter called and referred as 2nd Defendant) seeking inter-alia that, to partition the Corpus of the matter among the plaintiff and the 1st Defendant according to the shares which are mentioned in paragraph 10 of the Plaint.

In response the 2nd Defendant aforementioned filled his statement of claim and stated inter

alia that,

1. The land which is depicted in the preliminary plan is the land called Makulugahawatta Alis Makku Marikkar Thottam which is situated in Kaluwamodera, not the land called Thangagewatta Alias Dangahawatta

2. The land which is sought to be partitioned is not identified and that was not situated in village called Kaluwamodera.

In the trial, 34 points of contests had been discussed and on behalf of the Plaintiff, document marked P-1 to P-14 and on behalf of the Defendant marked documents from V-1 to V-ll had been introduced. The Licensed Surveyor, Don Hendry Amerasinghe had given evidence on

behalf of the 2nd Defendant and the Plaintiff had given evidence on behalf of the Plaintiff. After the trial all the parties have filled their Written Submission. Thereafter on 24.6.1997 Learned District Judge delivered his Judgement granting the relief sought by the Pla intiff and did not consider the Defendant's position, that corpus has not been identified.

Being aggrieved by the said Judgement of the District Court of Kalutara, the 2nd Defendant lodged this appeal before the Court of Appeal.

The 2nd Defendant states that the land which is depicted in the Preliminary Plan marked as
"x" is a land situated in Kaluwamodera. But Kaluwamodera and Seenawatta are two different villages situated adjoining each other, in Kalutara Area.

In order to substantiate the 2nd Defendant's point hereinabove mentioned, the 2nd Defendant quotes that the Plaintiff has admitted the following in his plaint.

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~® ..,I.)® e®§l Otil", coec'@~@d Elll:l ~60,,; eJ~",6 ",6 'tI",."

Therefore the 2nd Defendant states that the Plaintiff has failed to prove that village of Kaluwamodera, was previously called as Seenawatta.

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Moreover, according to 20d Defendant the Plaintiff did not possess the corpus as illustrated hereinbelow;

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However, the 20d Defendant states that 20d Defendant has possessed the entire land and also

earned the prescriptive title to the entire corpus.

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The other standpoint of the 20d Defendant is that the land sought to be partitioned by the Plaintiff is called "Thangagewatta" alias "Dangahawatta" and that the fiscal notice and all the deeds nevertheless mentioned about Thanigahawatta"

Therefore the 2nd Defendant submits that Thangagewatta and Thanigahawatta are two different lands and further states that the deeds or documents produced by the Plaintiff did not prove that the land called Thanigahawatta is also called as Thangagewatta or Da nga hawatta.

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The other argument of the 2nd Defendant is that the Learned District Judge has come to the conclusion that Northern boundary of the corpus of this case is Makulugaha Watta alias Makku Marikka Thottam. On the other hand, Southern boundary of the said Makulugaha Watta alias Makku Marikka Thottam is Thangagewatta. The Learned District Judge has come to that conclusion based on deeds marked as P9, P10, Pl1, and P12.

The 2nd Defendant further states that when the aforementioned deeds are analyzed it is very clear that the Southern Boundary of the Makulugahawatta alias MakkuMarika Thottam is Thanigahawatta and not Thangagewatta or Dangahawatta. Boundaries of the corpus do not tally with the actual boundaries of the area.

The 2nd Defendant further states that he has possessed the entire land and also earned the prescriptive title to the entire corpus. 2nd Defendant has produced the electoral regi strar of year 1971 to prove his long-term possession to the corpus as 2 V 5.

On the perusal of "2V5", the 2nd Defendant states that he was in the possess ion of bearing assessment No.344/A which was situated in the lot No 1 of the Preliminary Surveyor Plan bearing No-442 of K.P. Fernando Licensed Surveyor and it is Clear that the 2nd Defendant has earned the prescriptive title to the subject matter.

The 2nd Defendant states that according, to the report of the preliminary plan, it is crystal clear that the Commissioner has not correctly identified the Corpus of the case.

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",,,,,1),,, @1),,; 6", ®"l)1)",,,,1)";,,, "'''','''''',,,; ®d"l) ®Bd",,1S ",,,,JOO® @1),,; i!)~ 'i;>1:l"'® ,,~ 5 ~ sa", @1),,; "i1)S"'!)"'. "i~&~""d "'" 5";t!",,6,, "',@, 'i;>1:l®1)c "'® ,,6et ,,6 @i5",' i!)~",' zOl",,,, "'® ",1)",' 1)",,,,,,,,,,' 8®",1S ",,,,,,'1),,, C~.

The 2nd Defendant states that according to the schedule of the fiscal sale notice (0,7), the North boundary of the Naripitiyewatta is Thangagewatta (z512sf(J)G'mDtsi2Sl(the Learned District Judge has come to the conclusion that Southern boundary of the corpus is

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Naripitiyewatta. However, said Naripitiyewatta is situated in Seenawatta area and not in Kaluwamodera.

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The 2nd, 5th, 6th and 7th Defendants in their Amended Statement of claims had stated inter alia
as follows.
The land sought to be partitioned was "Makkumarikkar" alias "Makulugahawatta" which was depicted as Lots 1 to 4 in Plan NO.201.

i) a) that the rights of the original owners of the said land were as follows:

a) M.L. Usubu Lebbel

M. L. Bawa Lebbe J

I.L. Omaru Lebbe

b) L.K. Ahamadu Lebbe Marikar -1/3
c) Sinna Lebber Amina Umma -1/6 + 1/12
d) M.L.N. Rahinathumma - 1/12

iii) that the rights devolved on the 2nd and 5th to 7th Defendants on the
chain of title set out therein and the plantation and the improvements
in Lot 1 in Plan No.442 belonged to the said Defendants only.

The 3,d and 4th Defendants in the Statement of Claim had averred inter alia that, what was depicted in Plan No.442 was a portion of "Makkumarikkar Thotam" alias "Makulugahawatta" at Kaluwamodera and "Thangahawatta" alias "Dangahawatta"

The 3,d and 4th Defendants also state that the land shown in Plan NO.201 devolved on the 2nd
to 7th Defendants in the manner set out therein and the action was liable to be dismissed as

a different land had been surveyed, whereas the 9th Defendant filed a Statement, claiming that the corpus should be confined to the land in Plan No.442.

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It's the standpoint of the Plaintiff that the Original Owner of the said land, Mohideen Lebbe Abdul, by Deed No.9863 dated 03.02.1916 transferred his rights to A.L.M. Uduma Lebbe Marikar which on the chain of title set out in the Plaint devolved on Uduma Lebbe Marikar and Cassim Lebbe Marikar.

The Plaintiff further states that the said Ca sim Lebbe Marikar died unmarried and issueless leaving behind the brother, U.L.M. Ismail Lebbe Marikar who died leaving the following children, I.L.M. Jaleel, I.L.M. Mushin, I.L.M. Mowjeed, I.L.M. Fathima.

Jaleel, Mushin and Mowjood herein above mentioned by Deed No.2449 dated 24.08.1982 conveyed their 3/4t h share to the Plaintiff and the said Fathima by Deed No.2450 dated 24.08.1982 transferred her 1/4t h share to the 1st Defendant.

The Plaintiff states that the 2,d Defendant without any right title or interests in the property had entered the land on 02.09.1985 and after cutting down some coconut trees, was making preparations to construct a building on it.

The standpoint taken by the District Court Judge is as mentioned in the paragraphs hereinbelow contained;

The Fiscal's Conveyance 'P7' executed in 1896 in respect of 'Naripitiyawatte' has on the North,

a land called "Thangewatta" and according to Mortgage Bond No.4451 (P8) in respect of

"Thangewatta" alia "Dangahawatta" is bounded on the North by "Makulugahawatta". Thus

the Learned District Court Judge held that "Makulugahawatta" and "Thangewatta" are two different lands.

The Deeds No.967 (P9) No.566 (P10), No.31260 (Pll) and No.3117 (P12) relating to "Makulugahawatta" portray the Southern boundary as "Thanigahawatta" and not Monikkawatta". Thus the "Makulugahawatta" and "Thanigahawatta" are two lands.

The Learned District Court Judge claimed that although the contesting Defendants attempted to show that the corpus was "Makulugahawatta" alias "Makkumarika Thottam", Deed '2D9' also described Southern boundary as "Thanigahawatta", and "Monikkawatta" and "Makkumarikar Thottam" and "Thanigahawatta" are two distinctive lands.

Based on the aforesaid judgment of the Learned District Court Judge, it is my view that the Deeds No.10133 dated 06.05.1916 described the land "Makulugahawatta" as follows;

North - Tikkawatta

East Pelawatte and another land

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South Minna Marikkar Mesthriyata owned Iddagahawatta or

Thanigahawatta and Munasena owned Dangahawatta

or Thangahawatta
West Monikawatta .

The Plaintiff's claim for "Thangage watte" alias "Dangahawatta" is founded on the Deed No.9863 dated 03.02.1916 in which the said land of about half Acre had been described as follows;
North

East

South

West

Makkunmarikar Thottam

Thanigahawatta

Naripitiyada
Monikkawatta

The Deeds "P2, P3, P4, P5 and P6" which flow from Deed "P1" of 1916 carry the same description.

In the circumstances aforesaid, a perusal of the Deed "2D18" and Deed "P1", both executed in 1916, point out that "Makulugahawatta" alias "Makkumarikar Thottam" and Thangage Watta" alias "Dangahawatte" existed side by side as two distinct and separate lands at least from 1916.

There is no ambiguity that in the Southern Boundary of "Makulugahawatta" alias "Makkumarikar Thottam there are two lands according to the Deed '2D18' namely; "Indigahawatte" alias "Thanigahwatte" and "Dangahawatte" alias "Thangagewatta".

The Plaintiff in his evidence had explained that he was residing in "Kombannage Watte" which was standing in the East of the corpus in this Case "Thangagewatte" alias "Thangahawatte".

The Northern Boundary of Thangagewatta is admittedly, Makkun marikar thottam alias Makulugahawatta and the Southern Boundary of Makkun marikar thottam alias Makulugahawatta is admittedly Thangagewatta, according to the deeds produced by the Plaintiff and the Defendants. This shows that these two lands adjoin each other.

It is clear that even surveyor Amarasinghe's plans shows that the Eastern and Western Boundaries as Thanigahawatta and Monikkagewatta, respectively as in the schedule to the Plaint.
It is pertinent to note that P7A is a copy of a Fiscal Conveyance for the land called Naripitiya, which is the Southern Boundary of the corpus. The Northern boundary of Naripitiya is Thangagewatta, according to this deed. This position is further fortified by a deed produced by the contesting defendants themselves marked 2V9. The 5th land in this deed is Naripitiya which gives the Northern Boundary as Thangagewatta.

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There was a boundary fence separating Thangagewatta and Makkunmarikarthottam which was admitted even by Mr. Amarasinghe. But the complaints made by the Plaintiff to the Police marked P13, P14 And P16 and the two plans made by the Defendant clearly demonstrate the attempts made by him to erase the boundary between the two Lands.

In the circumstances aforesaid, it is a wrong proposition by the 2nd Defendant and the other contestants to state that the land shown in Plan No.442 is a part of their land "Makulugaha Watte" alias "Makku Marikkar Thottam".

Therefore, owing to the aforementioned reasons, it is my standpoint that the appeal needs to be dismissed and the decision of the Learned District Court Judge must be upheld. Considering the above reasons, the Judgment of the learned DistrictJudge, dated 24/06/1997 is affirmed.
This appeal is dismissed with cost.

Judge of the Court of Appeal

Janak De Silva, J

I agree.

Judge of the Court of Appeal

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